

26SMCV02046 26SMCV02046

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CASE NAME: Ferrari

Financial Services, Inc., v. Preciado

CASE NO.: 26SMCV02046

MOTION: Writ
of Possession

HEARING DATE: 9/1/2026

Legal
Standard

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought." (CCP § 512.010(a).) Pursuant to Code of Civil Procedure ("CCP") section 512.010(b), the application must be submitted under oath and include:

(1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.

(2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge,

information, and belief of the plaintiff, of the reason for the detention.

(3) A particular description of the property and a statement of its value.

(4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.

(5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

Before the hearing on the Writ of Possession, the defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (CCP § 512.030.) “The writ will be issued if the court finds that the plaintiff’s claim is probably valid and the other requirements for issuing the writ are established.” (CCP § 512.040(b).) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (CCP § 511.090.)

Prior to the issuance of a writ of possession, the plaintiff must file an undertaking “in an amount not less than twice the value of the defendant’s interest in the property or in a greater amount.” (CCP § 515.010(a).)

ANALYSIS

Plaintiff Ferrari Financial

Services, Inc., seeks a writ of possession against Defendant Albert Preciado over the following property: 2022 Ferrari SF90, VIN# ZFF95NLA2N0275372 (the “Property” or “Vehicle”).

Claim and delivery is a provisional remedy available in an action to recover personal property. (CCP

§§511.010-516.050.) It enables a plaintiff or cross-complainant that asserts a right to the possession of the property to obtain temporary possession of the property pending a final determination of the action. (American Machine & Foundry Co. v. Pitchess (1968) 262 Cal.App.2d 490, 493; McFaddin v. H.S. Crocker Co. (1963) 219 Cal.App.2d 585, 590.) This remedy cannot be employed independently; it is available only as an auxiliary remedy in an action for the recovery of personal property. (American Machine, supra, 219 Cal.App.2d at 590.) The remedy is available to individuals, corporations, partnerships or other unincorporated associations, and public entities. (See CCP §§511.070, 511.100; see Ananda Church of Self-Realization v. Mass. Bay Ins. Co. (2002) 95 Cal.App.4th 1273, 1281 [“Claim and delivery is a remedy....”].)

“The standard elements of a claim for breach of contract are: ‘(1) the contract, (2) plaintiff’s performance excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.’” (Wall Street Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

“Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion are: (1) the plaintiff’s ownership or right to possession of the property at the time of the conversion; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages. It is not necessary that there be a manual taking of the property; it is only necessary to show an assumption of control or ownership over the property, or that the alleged converter has applied the property to his own use.” (Farmers Ins. Exchange v. Zerin (1997) 53 Cal.App.4th 445, 451-452.)

Plaintiff demonstrates a probable validity of its claims. On May 14, 2022, Defendant, as lessee, and Ferrari of Beverly Hills, as lessor, entered into the Lease for the Vehicle. (Verified Compl. ¶ 6, Ex. A.) Upon execution, the Lease was assigned to Plaintiff. (Id., ¶ 7.) Pursuant to the Lease, and beginning on May 14, 2022, Defendant agreed to make monthly payments to Plaintiff in the amount of \$6,379.21 for sixty (60) months. (Id., ¶ 8, Ex. A [Lease], at p. 2.) Under the terms of the Lease, Defendant was in default if he failed to make payments when due or breached any other Lease term or condition. (Id. at p. 3.) Defendant last made a payment on the Lease in December 2025. (Compl. ¶ 11.) Although Plaintiff demanded surrender of the Vehicle, Defendant ignored Plaintiff’s request. (Id. ¶ 12, Ex. B [Demand Letter].)

Defendant has unlawfully detained the Vehicle for several months. (App. ¶ 3.)

The application includes the required statutory statements. (CCP § 512.010(b)(4)-(5).) The Vehicle is probably located at 10521 Rocca Pl, Los Angeles, CA 90077, based on the best knowledge, information, and belief of Plaintiff's agent. Therefore, there is probable cause to believe that such property is located there. Plaintiff's agent also declares that the property has not been taken for a tax, assessment, or fine, pursuant to a statute, or seized under an execution against the property of the plaintiff. The approximate value of the vehicle is set forth in the incorporated Lease Agreement.

Defendant has no interest in the vehicle. An undertaking is therefore not required. (CCP § 515.010(b).)

Accordingly, the application is GRANTED.